

Justification for Other than Full and Open Competition (JOFOC)

1. **REQUIRING AGENCY** – DOJ/Bureau of Prisons, FCI Morgantown, West Virginia
2. **NATURE/DESCRIPTION OF ACTION BEING APPROVED** – Sole source acquisition. It is determined that only one responsible source is capable of providing services to the institution, and that such an award would prevent serious injury, financial, or other liabilities to the Government. Seven Corners, Inc. is the incumbent. This action is for the acquisition of urgent medical services for an inmate. The inmate catastrophic medical services were provided August 1 – 31, 2024.
3. **DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS** Agency requires catastrophic medical services. As part of the mission of the institution, medical services are provided to the inmate population. In meeting the healthcare needs of the inmate population, the BOP provides essential medical, dental, and mental health services to Federal inmates. When a medical need arises that cannot be provided by the institution medical staff, referrals are made to community-based medical providers. This action is for out-of-network medical services. Estimated value of requirement is \$140,322.12.
4. **IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION** – The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) as implemented by FAR 6.302-1, Only One Responsible Source. FAR 6.302-1(a)(2).
5. **DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:** The sole source acquisition is through the incumbent contractor of the comprehensive medical services contract. The incumbent contractor is able to provide services related to catastrophic medical care.
6. This is an urgent requirement with only one responsible source capable of providing services.
7. The contracting officer has determined the rates to be fair and reasonable in accordance with FAR 15.404-1(b)(2)(i). It is in the best interest of the Government to continue services with the incumbent provider for inmate catastrophic medical requirements.
8. It has been determined only one source is currently available to provide immediate and urgent services to maintain continuity of medical care.
9. There are no other supporting facts identified.
10. There are no other sources available that would be able to provide the services in the immediate timeframe required by the Government.
11. No actions identified.
12. **Certification**

Submitted By:

I certify that the supporting data provided by the technical and requirements personnel which forms the basis for this justification is complete and accurate to the best of my knowledge and belief.

A handwritten signature in black ink, appearing to be 'J. M.', is written over a horizontal line.

Health Service Administrator

CONTRACTING OFFICER'S CERTIFICATION:

I certify this justification is accurate and complete to the best of my knowledge and belief.

A horizontal line with a small handwritten mark at the end, likely a signature or initials, positioned above the text 'Contract Specialist'.

Contract Specialist